Shell India Markets Pvt. Ltd vs Indian Oil Corporation Ltd. & Ors. Rpd & ... on 28 July, 2017

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COURT-I

IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
(APPELLATE JURISDICTION)

APPEAL NO. 180 OF 2012

Dated: 28th July, 2017

Present: Hon'ble Mrs. Justice Ranjana P. Desai, Chairperson
Hon'ble Mr. B.N. Talukdar, Technical Member (P&NG)

In the matter of :

Shell India Markets Pvt. Ltd. .... Appellant(s)
Vs.
Indian Oil Corporation Ltd. & Ors. .... Respondent(s)

Counsel for the Appellant(s) : Mr. Jay Salva
Mr. Prabhat Chaurasia
Ms. Renuka Sahu

Counsel for the Respondent(s) : Mr. Rajat Navet
Mr. Rohan Yadav for R-1 to R-3

Mr. Vijay Kumar for R-5

Mr. Sumit Kishore for R.6

ORDER

Learned counsel for the Appellant states that as of date the contesting Respondents have reverted to the notified policy and consequently the prices of motor spirit and high speed diesel are now market determined. Part of the relief sought in the complaint before the PNGRB i.e. Respondent No.6 has been granted. In view of this, the Appellant has instructed the counsel to withdraw the present appeal.

In the circumstances, the appeal is allowed to be withdrawn and is disposed of as such. However, in case a fresh cause of action arises, the Appellant will be at liberty to adopt appropriate remedy available to it in law. We make it clear that on the merits of case, we have expressed no opinion. Needless to say that in case any remedy is adopted by the Appellant, the forum seized of the

proceeding filed by the Appellant shall deal with the same independently and in accordance with law.

(B.N. Talukdar)
Technical Member (P&NG)

(Justice Ranjana P. Desai)
Chairperson

Bn/pr